

ASCII MASTER FLOW – PANEL 1/12: Part IV's constitutional operating logic

PART IV: DIRECTIVE PRINCIPLES OF STATE POLICY, ARTICLES 36-51

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- +-- ARTICLE 36: "STATE" carries the Part III / Article 12 meaning
 - | +-- the same public power is restrained by rights and directed toward welfare
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- +-- ARTICLE 37: THREE-PART CONSTITUTIONAL RULE
 - +-- no court directly enforces a Directive Principle
 - +-- the principles remain fundamental in governance
 - +-- the State has a duty to apply them in making laws
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 - +-- legislation + budget + administration + political accountability
 - +-- interpretation of rights and statutes, without judicial budgeting

CORE DISTINCTION

non-justiciable != optional; constitutional duty != an automatic individual remedy.

MUST REMEMBER: Article 37 makes Articles 36-51 non-justiciable but fundamental in governance;
teach every directive, its amendment history and implementation mechanism before applying
the non-textual socialistic/Gandhian/liberal taxonomy.

SOCIAL ORDER AND DISTRIBUTION

- +-- 38(1): welfare through social, economic and political justice
- +-- 38(2): minimise inequalities in income, status, facilities and opportunities
- +-- 39(a): adequate livelihood 39(d): equal pay for equal work
- +-- 39(b): resources serve common good 39(e): worker / child health
- +-- 39(c): prevent harmful concentration 39(f): childhood in dignity

ACCESS AND SELF-GOVERNMENT

- +-- 39A: equal justice + free legal aid
- +-- 40: village panchayats as units of self-government

WORK, SECURITY AND ASSOCIATION

- +-- 41: work, education and assistance, subject to economic capacity
- +-- 42: humane work conditions + maternity relief
- +-- 43: living wage + decent life + rural cottage industries
- +-- 43A: workers participate in management
- +-- 43B: voluntary, autonomous, democratic and professional co-operatives

ASCII MASTER FLOW – PANEL 3/12: Articles 44-51: reform, capability and constitutional civilisation

REFORM / CAPABILITY

44 Uniform Civil Code
45 care and education below six
46 weaker sections; especially
Scheduled Castes and Tribes
47 nutrition, living standard,
public health and prohibition
48 scientific agriculture and
animal husbandry; cattle rule

ECOLOGY / INSTITUTIONS / PEACE

48A environment, forests and wildlife
49 nationally important monuments and objects
50 judiciary separated from executive
51(a) international peace and security
51(b) just and honourable relations
51(c) international law and treaty obligations
51(d) arbitration of international disputes

CLOSE-OPTION CONTROLS

Article 41 contains an economic-capacity limit; Article 46 is not confined to SCs/STs.
Article 49 requires declaration by or under Parliamentary law.
Article 51 does not make every treaty self-executing in domestic law.

ASCII MASTER FLOW – PANEL 4/12: Classification and amendment overlays

ANALYTICAL CLASSIFICATION: THE CONSTITUTION DOES NOT CREATE THESE LABELS

- +-- SOCIALISTIC: 38, 39, 39A, 41, 42, 43, 43A, 47
- +-- GANDHIAN: 40, 43, 43B, 46, 47, 48
- +-- LIBERAL-INTELLECTUAL: 44, 45, 48, 48A, 49, 50, 51
- +-- OVERLAPS: 43, 46, 47 and 48 resist rigid pigeonholes

AMENDMENT OVERLAY

42nd, 1976 -> 39(f) recast; 39A, 43A and 48A inserted

44th, 1978 -> Article 38(2) inserted

86th, 2002 -> Article 21A inserted; Article 45 recast for children below six

97th, 2011 -> Article 43B inserted

EXAM RULE

Begin with the Article's exact text; use categories only as an explanatory aid.

ASCII MASTER FLOW – PANEL 5/12: FR-DPSP evolution and the surviving Article 31C

CHAMPAKAM DORAIRAJAN (1951) -> enforceable Fundamental Rights prevail over conflicting directives

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1st / 4th / 17th AMENDMENTS -> protective constitutional responses

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I.C. GOLAKNATH (1967) -> Parliament cannot amend Fundamental Rights

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1971 24th + 25th AMENDMENTS -> amendment power affirmed; Article 31C created

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KESAVANANDA BHARATI (1973) -> amend, but do not damage basic structure; first limb of 31C survives

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1976 42nd -> attempted extension of 31C to every DPSP

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MINERVA MILLS (1980) -> extension invalid; harmony between Parts III and IV is basic structure

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PROPERTY OWNERS ASSOCIATION (2024) -> surviving shield remains for genuine 39(b)/(c) laws

CURRENT SCOPE: shield against Articles 14 and 19; nexus and basic structure remain reviewable.

ASCII MASTER FLOW – PANEL 6/12: Implementation chain: directive to law, institution and outcome

DPSP TEXT

- > legislature selects instrument and competence
- > appropriation funds the programme
- > executive creates rules, staff and delivery systems
- > courts review legality and interpret rights consistently where possible
- > audit, opposition, civil society and elections test outcomes

ARTICLE 39A INSTITUTIONAL CHAIN

NALSA -> State Authorities -> District Authorities -> Taluk Committees

- +-- section 12 eligibility categories + prescribed income route
- +-- section 13 prima-facie entitlement control

LOK ADALAT DISTINCTION

Ordinary Lok Adalat -> settlement only; no merits decision if compromise fails.

Permanent Lok Adalat -> public utility dispute; conciliation, then bounded merits power.

LIMIT: an implementation law illustrates a directive; it does not exhaust its meaning.

CLOSE DISTINCTION: The present FR-DPSP position is harmony, not blanket primacy. Original Article 31C survives only for genuine Article 39(b)/(c) laws against Articles 14 and 19, with nexus and basic-structure review preserved.

ASCII MASTER FLOW – PANEL 7/12: Article 44: equality, pluralism and federal legislative design

ARTICLE 44: STATE ENDEAVOUR TO SECURE A UNIFORM CIVIL CODE FOR CITIZENS

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- +-- LEGISLATIVE BASE: Concurrent List Entry 5
- +-- CONSTITUTIONAL AIMS: equality, dignity, legal certainty and common citizenship
- +-- CONSTITUTIONAL LIMITS: religious freedom, cultural pluralism and federal diversity
- |
- +-- POSSIBLE ROUTES
 - +-- targeted removal of discriminatory rules
 - +-- optional secular civil-law route
 - +-- harmonised principles with protected diversity
 - +-- comprehensive code with consultation and transition

CURRENT CONTROL

Uttarakhand: 2024 Act commenced 27 Jan 2025.

January 2026 Ordinance -> Amendment Act published 7 Apr 2026.

Article 44 is non-justiciable; judicial observations do not command one model.

ASCII MASTER FLOW – PANEL 8/12: Criticism, institutional limits and constitutional relevance

CRITIQUE

no direct judicial remedy
broad, unevenly arranged aspirations
resource-dependent promises
judicial overreach risk
Centre-State friction
symbolic compliance

CONSTITUTIONAL RESPONSE

Article 37 creates duty and political sanction
breadth permits democratic sequencing and adaptation
Article 41 admits capacity; budgets expose trade-offs
interpretation cannot become continuous administration
competence, finance and institutions condition delivery
test law + institution + implementation + outcome

WHY PART IV STILL MATTERS

- +-- sets the welfare and distributive purpose of public power
- +-- guides legislation and rights-consistent interpretation
- +-- supplies standards for democratic accountability
- +-- restrains laissez-faire indifference and unbounded judicial substitution

BALANCED VERDICT: direction is binding in purpose, flexible in implementation.

ASCII MASTER FLOW – PANEL 9/12: Prelims traps, PYQ routes and the Mains answer spine

PRELIMS CONTROL BOARD

36 -> Part III meaning of State	37 -> no direct enforcement, but duty remains
39(b) resources / common good	39(c) harmful concentration
41 -> economic-capacity qualifier	45 -> below six after 86th Amendment
48A -> environment	50 -> judiciary-executive separation
51A -> Fundamental Duties, not DPSP	31C -> only 39(b)/(c); Articles 14 and 19 shield

VERIFIED ROUTES

2020: Article 50; UDHR reflection; legal aid; welfare State; Part IV force
2021: concentration of wealth 2023 GS-II: NALSA and legal aid
2025: constitutional Part matching, official local key verified

MAINS SPINE

- 1 define Part IV through Articles 36-37
- 2 map exact directive / case / law demanded
- 3 explain mechanism and implementation evidence
- 4 qualify with rights, federal competence, finance and institutional limits
- 5 conclude: distributive ends through rights-disciplined means.

ASCII MASTER FLOW – PANEL 10/12: Current-law and evidence control

VOLATILE CLAIM

- > check official Constitution / judgment / Gazette
- > record date + instrument + exact legal effect
- > separate FACT from inference and unresolved litigation

CONTROLLED POSITIONS

- Article 31C -> 39(b)/(c); Articles 14/19 shield; review retained
- Legal aid -> Suhas Chakma (2024): monitored prison-delivery chain
- Labour Codes -> four Codes effective 21 Nov 2025
- Uttarakhand UCC -> April 2026 Amendment Act succeeded January Ordinance

DO NOT OVERSTATE

No court command for a UCC; not every private asset is a 39(b) resource;
volatile office holders are not durable doctrine.

ASCII MASTER FLOW – PANEL 11/12: Executable 10, 15 and 20-mark answer routes

10 MARKS / 150 WORDS

exact Article -> three mechanisms -> one limit -> direct verdict

15 MARKS / 250 WORDS

chronology or comparison -> implementation evidence -> two gaps -> tied reforms

20 MARKS / 300 WORDS

thesis -> analytical dimensions -> institutional/fiscal/rights counter-case
-> executable way forward -> graded degree verdict

SCALING RULE

Increase dimensions and evidence with marks; do not merely lengthen generic prose.

Every answer closes: exact text + mechanism + evidence + limitation + verdict.

ASCII MASTER FLOW – PANEL 12/12: Current implementation control: legal aid, labour and UCC

ARTICLE 39A -> Legal Services Authorities Act 1987 -> NALSA / SLISA / DLSA / TALUK
SUHAS CHAKMA, 23 OCT 2024 -> structured prison legal-aid monitoring
FOUR LABOUR CODES -> operative from 21 NOV 2025; implementation capacity still varies
UTTARAKHAND UCC -> 2024 Act commenced 27 JAN 2025 -> Amendment Act 7 APR 2026
RULE: implementation evidence does not turn Article 37 into direct enforceability.
LEGAL/SOURCE LIMIT: Current examples must be legally current: Property Owners Association
(2024) controls Article 31C, Rajendra N Shah limits Part IX-B but not Article 43B, and
Uttarakhand's April 2026 Amendment Act supersedes the January Ordinance.